

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

FIFTH SECTION

CASE OF ORESHNIKOVA AND OTHERS v. RUSSIA

(Applications nos. 13744/19 and 19 others –
see appended list)

JUDGMENT

STRASBOURG

16 May 2024

This judgment is final but it may be subject to editorial revision.



In the case of Oreshnikova and Others v. Russia,

The European Court of Human Rights (Fifth Section), sitting as a Committee composed of:

María Elósegui*, President*,
Mattias Guyomar,
Kateřina Šimáčková*, judges*,

and Viktoriya Maradudina, *Acting Deputy Section Registrar,*

Having deliberated in private on 18 April 2024,

Delivers the following judgment, which was adopted on that date:

PROCEDURE

1. The case originated in applications against Russia lodged with the Court under Article 34 of the Convention for the Protection of Human Rights and Fundamental Freedoms ("the Convention") on the various dates indicated in the appended table.

2. The Russian Government ("the Government") were given notice of the applications.

THE FACTS

3. The list of applicants and the relevant details of the applications are set out in the appended table.

4. The applicants complained of the disproportionate measures taken against them as organisers or participants of public assemblies. They also raised other complaints under the provisions of the Convention.

THE LAW

I. JOINDER OF THE APPLICATIONS

5. Having regard to the similar subject matter of the applications, the Court finds it appropriate to examine them jointly in a single judgment.

II. JURISDICTION

6. The Court observes that the facts giving rise to the alleged violations of the Convention occurred prior to 16 September 2022, the date on which the Russian Federation ceased to be a party to the Convention. The Court therefore decides that it has jurisdiction to examine the present applications (see *Fedotova and Others v. Russia* [GC], nos. 40792/10 and 2 others, §§ 68-73, 17 January 2023).

III. ALLEGED VIOLATION OF ARTICLE 11 OF THE CONVENTION

7. The applicants complained principally of disproportionate measures taken against them as organisers or participants of public assemblies, namely their arrest in relation to the dispersal of these assemblies and their conviction for administrative offences. They relied, expressly or in substance, on Article 11 of the Convention.

8. The Court refers to the principles established in its case-law regarding freedom of assembly (see *Kudrevičius and Others v. Lithuania* [GC], no. 37553/05, ECHR 2015, with further references) and proportionality of interference with it (see *Oya Ataman v. Turkey*, no. 74552/01, ECHR 2006-XIV, and *Hyde Park and Others v. Moldova*, no. 33482/06, 31 March 2009).

9. In the leading cases of *Frumkin v. Russia,* no. 74568/12, ECHR 2016 (extracts), *Navalnyy and Yashin v. Russia,* no. 76204/11, 4 December 2014, and *Kasparov and Others v. Russia,* no. 21613/07, 3 October 2013, the Court already found a violation in respect of issues similar to those in the present case.

10. Having examined all the material submitted to it, the Court has not found any fact or argument capable of persuading it to reach a different conclusion as to the admissibility and merits of these complaints. Having regard to its case-law on the subject, the Court considers that in the instant case the interferences with the applicants' freedom of assembly were not "necessary in a democratic society".

11. These complaints are therefore admissible and disclose a breach of Article 11 of the Convention.

IV. OTHER ALLEGED VIOLATIONS UNDER WELL-ESTABLISHED CASE-LAW

12. Almost all applicants submitted other complaints which also raised issues under the Convention and its Protocols, given the relevant well-established case-law of the Court (see appended table). These complaints are not manifestly ill-founded within the meaning of Article 35 § 3 (a) of the Convention, nor are they inadmissible on any other ground. Accordingly, they must be declared admissible.

13. Having examined all the material before it, the Court concludes that these complaints also disclose violations of the Convention and its Protocols in the light of its findings in *Butkevich v. Russia*, no. 5865/07, §§ 63-65, 13 February 2018, *Tsvetkova and Others v. Russia*, nos. 54381/08 and 5 others, §§ 115-31, 10 April 2018, and *Korneyeva v. Russia*, no. 72051/17, §§ 34-36, 8 October 2019, as to various aspects of unlawful deprivation of liberty of organisers or participants of public assemblies; *Karelin v. Russia*, no. 926/08, §§ 58-85, 20 September 2016, concerning the absence of a

prosecuting party in the proceedings under the Code of Administrative Offences (the CAO); and *Martynyuk v. Russia*, no. 13764/15, §§ 38-42, 8 October 2019, relating to the lack of suspensive effect of an appeal against the sentence of administrative detention.

V. REMAINING COMPLAINTS

14. Some applicants raised further additional complaints under Article 6 of the Convention concerning other aspects of fairness of the administrative-offence proceedings. In view of the findings in paragraphs 10-11 and 13 above, the Court considers that there is no need to deal separately with these remaining complaints.

VI. APPLICATION OF ARTICLE 41 OF THE CONVENTION

15. Regard being had to the documents in its possession and to its case-law (see in particular *Navalnyy and Others v. Russia* [Committee], nos. 25809/17 and 14 others, § 22, 4 October 2022), the Court finds it reasonable to award the sums indicated in the appended table.

FOR THESE REASONS, THE COURT, UNANIMOUSLY,

1. *Decides* to join the applications;

2. *Holds* that it has jurisdiction to deal with these applications as they relate to facts that took place before 16 September 2022;

3. *Declares* the complaints under Article 11 of the Convention and the other complaints under the well-established case-law of the Court, as set out in the appended table, admissible, and *finds* that there is no need to examine separately the remaining complaints under Article 6 of the Convention;

4. *Holds* that these applications disclose a breach of Article 11 of the Convention;

5. *Holds* that there has been a violation of the Convention and the Protocols thereto as regards the other complaints raised under the well-established case-law of the Court (see appended table);

6. *Holds*
   (a) that the respondent State is to pay the applicants, within three months, the amounts indicated in the appended table, to be converted into the currency of the respondent State at the rate applicable at the date of settlement;

(b) that from the expiry of the above-mentioned three months until settlement simple interest shall be payable on the above amounts at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points.

Done in English, and notified in writing on 16 May 2024, pursuant to Rule 77 §§ 2 and 3 of the Rules of Court.

Viktoriya Maradudina	María Elósegui
Acting Deputy Registrar	President

APPENDIX

List of applications raising complaints under Article 11 of the Convention
(disproportionate measures against organisers and participants of public assemblies)

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative / criminal offence	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
1.	13744/19 17/02/2019 and 6208/22 13/01/2022	**Oksana Petrovna ORESHNIKOVA** 1996	Vasin Vladimir Valeryevich Krasnoyarsk	Opposition manifestation Krasnoyarsk 05/05/2018 Rally "Free Navalnyy" Krasnoyarsk 21/04/2021	Article 20.2 § 5 of CAO article 20.2 § 5 of CAO	fine of RUB 15,000 fine of RUB 15,000	Krasnoyarsk Regional Court 18/10/2018 Krasnoyarsk Regional Court 15/07/2021	Art. 5 (1) - unlawful detention – a) arrest and detention on 05/05/2018 for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours; b) escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 10.40 p.m. on 21/04/2021 to 2.00 a.m. on 22/04/2021, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in both sets of the administrative-offence proceedings	4,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative / criminal offence	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
2.	31909/19 28/05/2019 and 13223/22 18/02/2022	**Igor Nikolayevich ADYASOV** 1970	Karavayev Aleksandr Yevgenyevich Nizhniy Novgorod Usanova Olimpiada Valentinovna Nizhniy Novgorod	Manifestation against the pension reform Nizhny Novgorod 09/09/2018 Rally "Free Navalnyy" Nizhniy Novgorod 31/01/2021	Article 20.2 § 6.1 of CAO article 20.2 § 5 of CAO	70 hours of community work fine of RUB 10,000	Nizhniy Novgorod Regional Court 29/11/2018 Nizhniy Novgorod Regional Court 18/08/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in both sets of the administrative-offence proceedings; Art. 5 (1) - unlawful detention - escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 1.20 p.m. on 31/01/2021 to 01/02/2021, hearing in the applicant's administrative-offence case; the applicant spent 3h40 in the police van	4,000
3.	45970/21 24/08/2021	**Vladislav Sergeyevich POLISHCHUK** 2002	Zboroshenko Nikolay Sergeyevich Moscow	Rally "Free Navalnyy" Moscow 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 20,000	Moscow City Court 30/03/2021	Art. 5 (1) - unlawful detention - escorting to a police station for the purpose of drawing up a record of administrative offence on 31/01/2021, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
4.	45975/21 24/08/2021	**Yefim Dmitriyevich STULOV** 2001	Zboroshenko Nikolay Sergeyevich Moscow	Rally "Free Navalnyy" Moscow 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 20,000	Moscow City Court 30/03/2021	Art. 5 (1) - unlawful detention - escorting to a police station for the purpose of drawing up a record of administrative offence on 31/01/2021, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative / criminal offence	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
5.	45979/21 24/08/2021	**Natalya Alekseyevna SHEVCHENKO** 1996	Zboroshenko Nikolay Sergeyevich Moscow	Rally "Free Navalnyy" Moscow 02/02/2021	article 20.2 § 6.1 of CAO	administrative detention of 8 days	Moscow City Court 08/04/2021	Art. 5 (1) - unlawful detention - escorting to a police station for the purpose of drawing up a record of administrative offence on 02/02/2021, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	5,000
6.	45984/21 24/08/2021	**Konstantin Valeryevich PLATOV** 1975	Zboroshenko Nikolay Sergeyevich Moscow	Rally "Free Navalnyy" Moscow 31/01/2021	article 20.2 § 6.1 of CAO	administrative detention of 12 days	Moscow City Court 26/04/2021	Art. 5 (1) - unlawful detention - escorting to a police station for the purpose of drawing up a record of administrative offence on 31/01/2021, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	5,000
7.	46159/21 26/08/2021	**Vyacheslav Vladimirovich NIZOVTSEV** 1989	Shchukin Andrey Yevgenyevich Nizhniy Tagil	Rally "Free Navalnyy" Yekaterinburg 23/01/2021	article 20.2 § 5 of CAO	fine of RUB 20,000	Sverdlovsk Regional Court 04/08/2021		3,500
8.	46170/21 04/09/2021	**Oleg Viktorovich PSHENICHNYY** 1964	Savelyeva Alena Alekseyevna Moscow	Rally "Free Navalnyy" Moscow 31/01/2021	article 20.2 § 6.1 of CAO	administrative detention of 10 days	Moscow City Court 04/03/2021	Art. 5 (1) - unlawful detention - escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 1.30 p.m. on 31/01/2021 to 2.00 p.m. on 01/02/2021, hearing in the applicant's administrative-offence case; the applicant spent 3 hours in the police van, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings, Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - the sentence of administrative detention imposed on the applicant was	5,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative / criminal offence	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
								executed immediately, on account of the lack of suspensive effect of an appeal under the CAO	
9.	46179/21 26/08/2021	**Maksim Stanislavovich LYSIKOV** 1989	Zboroshenko Nikolay Sergeyevich Moscow	Rally "Free Navalnyy" Moscow 23/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 30/03/2021	Art. 5 (1) - unlawful detention - escorting to a police station for the purpose of drawing up a record of administrative offence on 23/01/2021, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
10.	46185/21 26/08/2021	**Vladislav Mikhaylovich VARGA** 1994	Zboroshenko Nikolay Sergeyevich Moscow	Rally "Free Navalnyy" Moscow 02/02/2021	article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 30/03/2021	Art. 5 (1) - unlawful detention - escorting to a police station for the purpose of drawing up a record of administrative offence on 02/02/2021, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
11.	59547/21 19/11/2021	**Yegor Aleksandrovich VNUKOV** 2000	Memorial Human Rights Centre Moscow	Rally "Free Navalnyy" Krasnoyarsk 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Krasnoyarsk Regional Court 20/05/2021	Art. 5 (1) - unlawful detention - escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 1.20 p.m. to 8.00 p.m. on 31/01/2021, while the said record was drawn up only on 12/02/2021; the applicant spent 2 hours in the police van, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
12.	389/22 03/12/2021	**Aleksandr Dmitriyevich ROGOZHKIN** 2000	Kartashov Konstantin Borisovich Penza	Rally "Free Navalnyy" Penza 23/01/2021	article 20.2 § 6.1 of CAO	30 hours of community work	Penza Regional Court 03/06/2021	Art. 5 (1) - unlawful detention - escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 9.50 a.m. to 8.40 p.m. on 21/04/2021, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative / criminal offence	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
13.	506/22 09/12/2021	**Dmitriy Igorevich ZHUROV** 1991		Rally "Free Navalnyy" Magadan 21/04/2021	article 20.2 § 6.1 of CAO	40 hours of community work	Magadan Regional Court 11/06/2021	Art. 5 (1) - unlawful detention - escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 7.30 p.m. on 21/04/2021 to 8.00 p.m. on 22/04/2021, hearing in the applicant's administrative-offence case, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
14.	3043/22 21/12/2021	**Dmitriy Alekseyevich ZAIGRALOV** 1997	Pershakova Yelena Yuryevna Moscow	Rally "Free Navalnyy" Moscow 02/02/2021	article 20.2 § 6.1 of CAO	fine of RUB 10,000	Moscow City Court 21/06/2021	Art. 5 (1) - unlawful detention - escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 11.50 p.m. on 02/02/2021 to 8.00 p.m. on 03/02/2021, hearing in the applicant's administrative-offence case, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
15.	3158/22 16/12/2021	**Daniil Yevgenyevich SHURYGIN** 1999	Koshcheyev Konstantin Yuryevich Petrozavodsk	Rally "Free Navalnyy" Petrozavodsk 23/01/2021	article 20.2 § 5 of CAO	fine of RUB 5,000	Supreme Court of the Karelia Republic 17/06/2021	Art. 5 (1) - unlawful detention - escorting to a police station for the purpose of drawing up a record of administrative offence on 23/01/2021, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
16.	3345/22 14/12/2021	**Aleksandr Igorevich BAZHUKOV** 1994	Shimovolos Sergey Mikhaylovich Nizhniy Novgorod	Rally "Free Navalnyy" Nizhniy Novgorod 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Nizhniy Novgorod Regional Court 24/06/2021	Art. 5 (1) - unlawful detention - escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 1.40 p.m. to 11.00 p.m. on 31/01/2021; the applicant spent more than 4 hours in the police van, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative / criminal offence	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
17.	3361/22 17/12/2021	**Roman Agitovich USOYAN** 1999		Rally "Free Navalnyy" St Petersburg 31/01/2021	article 20.2 § 6.1 of CAO	fine of RUB 20,000	St Petersburg City Court, 11/05/2021, the applicant was absent and not represented on appeal, he received a copy of the decision on 17/06/2021		3,500
18.	9260/22 20/12/2021	**Aleksey Sergeyevich KOROLEV** 1982	Moiseyenko Vladimir Anatolyevich Kaliningrad	Rally "Free Navalnyy" Kaliningrad 21/04/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Kaliningrad Regional Court 21/09/2021		3,500

[1] Plus any tax that may be chargeable to the applicants.